

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JUAN ROMERO & LOUIS WALKER,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NYPD OFFICER PETER
CHIOFOLO (Shield # 3960), and NYPD OFFICERS JOHN
and JANE DOE #'s 1-10 (names and numbers are unknown
at present) and Other Unidentified members of the New
York City Police Department,

Defendants.
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SUMMONS

Basis of Venue:
Place of Incident

Plaintiff Designates
Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiffs' attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
July 15, 2021

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007

NYPD OFFICER PETER CHIOFOLO (Shield # 3960), 292nd Command, 72nd Precinct, 830 4th
Avenue, Brooklyn, NY 11232

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
JUAN ROMERO & LOUIS WALKER,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, NYPD OFFICER PETER
CHIOFOLO (Shield # 3960), and NYPD OFFICERS JOHN
and JANE DOE #'s 1-10 (names and numbers are unknown
at present) and Other Unidentified members of the New
York City Police Department,

Defendants.

-----X
Plaintiffs **Juan Romero and Louis Walker**, by their attorney, SYDNEY O'HAGAN, ESQ., as and for the
Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiffs' rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983, the rights secured by the Fourth, Fifth, and Fourteenth Amendments to the United States Constitution and the laws of the State of New York. Plaintiffs were unlawfully arrested by the defendants. Plaintiffs were deprived of their federal constitutional and state constitutional and common law rights when the individually named police officer defendants subjected them to, among other things, false arrest, unlawful search and seizure, federal and state law malicious prosecution, negligence, gross negligence, intentional and negligent infliction of emotional distress and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiffs seek compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Juan Romero and Louis Walker are residents of the State of New York, Kings County.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiffs' rights as described herein.
4. NYPD OFFICER PETER CHIOFOLO, assigned Shield # 3960, employed with the 292nd Command, is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
5. NYPD OFFICER PETER CHIOFOLO (Shield #3960) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-10 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-10 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in them as officers, agents, and employees of the New York City Police

Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiffs in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of both Plaintiffs on August 10, 2020.

STATEMENT OF FACTS

15. On July 18, 2019, at approximately 4:00 p. m. at 830 4th Avenue, Brooklyn, New York, several police officers from the 72nd Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Peter Chiofolo (Shield # 3960), P.O. John and Jane Does #1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Romero.
16. On July 18, 2019, at approximately 4:00 p.m., Plaintiff Romero appeared voluntarily at the New York Police Department's 72nd Precinct.

17. After voluntarily appearing, NYPD officers, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion, arrested plaintiff. He was handcuffed, questioned, and then transferred to Brooklyn Central Booking.
18. While plaintiff was incarcerated at the 72nd precinct and Brooklyn Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that Plaintiff Romero had committed numerous crimes, including, Attempted Robbery in the First, Second, and Third Degrees, Menacing in the Second Degree, and Criminal Possession of a Weapon in the Fourth Degree. Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff Romero had committed any crime.
19. Based on the defendant's false statements, the Kings County District Attorney's office chose to prosecute Plaintiff Romero under docket CR-027100-19KN.
20. Based on the defendants' false and malicious accusations, the Plaintiff Romero was incarcerated for approximately 24 hours.
21. After being released on his own recognizance following his arraignment, on August 8, 2019, Plaintiff Romero was taken into custody for a parole violation stemming entirely from this arrest, and the defendants' false and malicious accusations. He remained incarcerated for 104 days. He was only released from custody upon the dismissal of his criminal case. During both periods of his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.
22. On January 31, 2020, the above-stated malicious prosecution terminated in Plaintiff Romero's favor when the case against him was dismissed and sealed in its entirety.
23. Prior to dismissal, Plaintiff Romero attended 3 court appearances.
24. As a result of his arrest and incarceration, Plaintiff Romero was unable to spend two of his daughters' birthdays with them, and he missed other important family events and holidays.

25. On July 9, 2019, at approximately 2:00 p. m. at 54th Street and 6th Avenue, Brooklyn, New York, several police officers from the 72nd Precinct, and other unknown police commands, including upon information and belief, defendant NYPD Officer Peter Chiofolo (Shield # 3960), P.O. John and Jane Does #1-8, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff Walker.
26. On July 9, 2019, at approximately 2:00 p.m., moments after arriving at Junior Deli at 54th Street and 6th Avenue, Plaintiff Walker was standing and speaking with acquaintances outside the Deli when NYPD officers, without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion that plaintiff had committed a crime, stopped and arrested him.
27. At the time of his arrest, and at all times subsequent, there was no evidence in or around Plaintiff's person indicating he had committed a crime.
28. Once the defendant officers approached Plaintiff Walker, he was not free to leave.
29. Defendant officers without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that Plaintiff Walker had committed a crime, falsely arrested Plaintiff.
30. Plaintiff Walker was transported to the 72nd precinct and then transferred to New York Central Booking.
31. Plaintiff Walker suffered emotional harm as a result of his time in custody.
32. While plaintiff was incarcerated at the 72nd precinct and Central Booking, defendants falsely and maliciously told the Kings County District Attorney's Office that Plaintiff Walker had committed numerous crimes, including, Attempted Robbery in the First, Second, and Third Degrees, Menacing in the Second Degree, and Criminal Possession of as Weapon in the Fourth Degree.

Defendants knew these allegations to be false based on the lack of any material evidence that Plaintiff had committed any crime.

33. Based on the defendant's false statements, the Kings County District Attorney's office chose to prosecute Plaintiff Walker under docket CR-026039-19KN.
34. Plaintiff Walker was incarcerated for approximately 29 hours. During his confinement, plaintiff was subjected to depraved, filthy and inhumane conditions.
35. Plaintiff Walker was released on his own recognizance at arraignment.
36. On January 31, 2020, the above-stated malicious prosecution terminated in Plaintiff Walker's favor when the case against him was dismissed and sealed in its entirety.
37. Prior to dismissal, Plaintiff Walker attended 2 court appearances.
38. Plaintiff Walker missed opportunities to work as a result of his incarceration. As a result of his arrest and malicious prosecution, he was no longer able to obtain employment from his previous employer.

FIRST CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

39. Plaintiffs repeat and alleges paragraphs 1 through 38 as if fully set forth herein.
40. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiffs and, in fact, confined plaintiffs and plaintiffs were conscious of the confinement. In addition, plaintiffs did not consent to the confinement and the confinement was not otherwise privileged.

41. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
42. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SECOND CAUSE OF ACTION

MALICIOUS PROSECUTION

43. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 42 with the same force and effect as if more fully set forth at length herein.
44. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
45. Defendants commenced and continued a criminal proceeding against Plaintiffs with malice and without probable cause, caused them a serious deprivation of liberty as a result, and Plaintiffs obtained a favorable termination on the fabricated charges.
46. Defendants commenced and continued a criminal proceeding against plaintiffs.
47. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiffs and for each of the charges for which they were prosecuted.
48. The prosecution and criminal proceedings terminated favorably to both plaintiffs on January 31, 2020.
49. Plaintiffs were subjected to a post-arraignment deprivation of liberty sufficient to implicate their state constitutional and tort rights.

50. The individually named defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

THIRD CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

51. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 50 with the same force and effect as if more fully set forth at length herein.
52. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FOURTH CAUSE OF ACTION

FAILURE TO INTERVENE

53. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 52 with the same force and effect as if more fully set forth at length herein.
54. Defendants had an affirmative duty to intervene on behalf of plaintiffs, whose constitutional rights were being violated in their presence by other members of the NYPD.
55. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
56. As a result of the foregoing, plaintiffs were subjected to an illegal search and undue force upon their person over the course of the false arrest.

57. Defendants were at all times agents, servants, and employees acting within the scope of his employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
58. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

FIFTH CAUSE OF ACTION

NEGLIGENCE

59. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 58 with the same force and effect as if more fully set forth at length herein.
60. Defendants owed a duty of care to plaintiff.
61. Defendants breached that duty of care by subjecting him to an illegal search and undue force and unprivileged deprivation of his liberty without sufficient or any cause to do so.
62. As a direct and proximate cause of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.
63. All of the foregoing occurred without any fault by plaintiff.
64. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

65. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 64 with the same force and effect as if more fully set forth at length herein.

66. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to plaintiffs and violated plaintiffs' statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
67. As a result of the foregoing, plaintiffs were deprived of liberty and sustained great emotional injuries.
68. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

SEVENTH, EIGHTH, NINTH CAUSES OF ACTION

42 U.S.C. § 1983 and 42 U.S.C. 1988

Violation of Fourth, Fifth, and Fourteenth Amendments of US Constitution pursuant to Court's concurrent jurisdiction over Plaintiff's false-arrest/unlawful-search claims (7th claim); malicious-prosecution claim (8^h claim) and deprivation-of-fair-trial claim (9th claim).

69. The plaintiffs repeat, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 68 with the same force and effect as if more fully set forth at length herein.
70. Defendants, while acting under color of state law, engaged in conduct that violated Plaintiffs' federal constitutional rights as protected by 42 USC Section 1983.
71. New York State courts have concurrent jurisdiction to hear federal claims such as Plaintiffs' Section 1983 ones here.
72. Plaintiffs' federal constitutional claims—brought pursuant to 42 USC 1983 and 1988—allege the violation of his Fourth, Fifth, Eighth and Fourteenth Amendment rights.

73. In particular, Plaintiffs allege that Defendants' use of unlawful search and malicious prosecution violated their Fourth, Fifth, and Fourteenth Amendment rights insofar as Defendants had no cause or legal privilege to submit Plaintiffs to deprivation of his liberty, seizure and search of their person, and other constitutional injuries, yet they did so with malice intent.
74. Insofar as Plaintiffs' federal claims, brought pursuant to the court's concurrent jurisdiction over them, mirror state constitutional tort and tort elements, Plaintiffs repeat and reiterates the above allegations in support of the federal claims here.
75. In the event Plaintiffs prevails at trial on one, some or all of their 42 USC Section 1983 claims pursuant to the court's concurrent jurisdiction, they also seeks reasonable fees and costs as prevailing party pursuant to 42 USC Section 1988.

TENTH CAUSE OF ACTION

Municipal liability pursuant to 42 USC Section 1983

Municipal liability pursuant to 42 USC Section 1983

76. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
77. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
78. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:
- A. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,

- B. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- C. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
- D. arresting individuals regardless of probable cause in order to deprive individuals of their right to freedom of speech under the First and Fourteenth Amendments and/or in retaliation for individuals exercising their First Amendment rights; and,
- E. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
- F. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

- 79. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiffs. This is evidenced by the more than 229 allegations of misconduct by officers of the 72nd precinct.
- 80. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiffs as alleged herein.
- 81. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiffs as alleged herein.

82. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiffs' constitutional rights.
83. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiffs' constitutional rights.
84. The acts complained of deprived the plaintiff of his right:
- G. Not to be deprived of liberty without due process of law;
 - H. To be free from seizure and arrest not based upon probable cause;
 - I. Not to have summary punishment imposed upon them; and

To receive equal protection under the law

WHEREFORE, JUAN ROMERO and LOUIS WALKER, plaintiffs, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
July 15, 2021

Respectfully submitted:

By: /s/ Sydney O'Hagan
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40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
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TO:

CITY OF NEW YORK: CORPORATION COUNSEL 100 Church Street, New York, NY 10007

NYPD OFFICER PETER CHIOFOLO (Shield # 3960), 292nd Command, 72nd Precinct, 830 4th Avenue, Brooklyn, NY 11232

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
July 15, 2021

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.